

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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BENJAMIN SQUIRES, KENNETH SQUIRES, DELLON
WATERTON, AND TIFFANY NESBITT,

Plaintiff,

-against-

THE CITY OF NEW YORK, DET. TYRONE WOODSON,
Shield No. 6107 (Tax. Id. No. 945022), Individually and in his
Official Capacity, POLICE OFFICERS "JOHN DOE" #1-10,
Individually and in their Official Capacity (the name John Doe
being fictitious, as the true names are presently unknown),

Defendants.

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SUMMONS

Jury Trial Demanded

Plaintiff designates Kings County
as the place of trial.

The basis of venue is:
CPLR § 504(3)

To the above-named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
August 10, 2018

COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

TO:

ZACHARY W. CARTER
Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007

DET. TYRONE WOODSON, Shield No. 6107 (Tax. Id. No. 945022)
83rd Precinct – Detective Squad
480 Knickerbocker Ave.
Brooklyn, NY 11237

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X

BENJAMIN SQUIRES, KENNETH SQUIRES, DELLON
WATERTON, and TIFFANY NESBITT,

Plaintiffs,

VERIFIED COMPLAINT

-against-

Jury Trial Demanded

THE CITY OF NEW YORK, DET. TYRONE
WOODSON, Shield No. 6107 (Tax. Id. No. 945022),
Individually and in his Official Capacity, POLICE
OFFICERS "JOHN DOE" #1-10, Individually and in their
Official Capacity (the name John Doe being fictitious, as
the true names are presently unknown),

BASIS FOR VENUE:

CPLR § 504(3)

Defendants.

-----X

Plaintiffs BENJAMIN SQUIRES, KENNETH SQUIRES, DELLON WATERTON, and
TIFFANY NESBITT, by their attorneys, COHEN & FITCH LLP, complaining of the defendants,
respectfully allege as follows:

FACTS

1. Plaintiff BENJAMIN SQUIRES is an African-American male and has been at all relevant times a resident of Kings County in the City and State of New York.
2. Plaintiff KENNETH SQUIRES is an African-American male and has been at all relevant times a resident of Kings County in the City and State of New York.
3. Plaintiff DELLON WATERTON is an Afro-Latino-American male and has been at all relevant times a resident of Kings County in the City and State of New York.
4. Plaintiff TIFFANY NESBITT is an African-American female and has been at all relevant times a resident of Kings County in the City and State of New York.

5. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

6. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

7. That at all times hereinafter mentioned, the individually named defendants, DET. TYRONE WOODSON and POLICE OFFICERS "JOHN DOE" #1-10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

8. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

9. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

10. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

The Incident

11. On or about October 19, 2017, at approximately 8:00 p.m., in the County of Kings, City, and State of New York, plaintiffs BENJAMIN SQUIRES, KENNETH SQUIRES, DELLON

WATERTON, and TIFFANY NESBITT were lawfully present in the vicinity of 130 Milford St. Brooklyn, NY.

12. Upon information and belief, 130 Milford St. Brooklyn, NY contains three (3) separate apartments, to wit, Apartment 1A, Apartment 1B, and Apartment 2.

13. At the aforementioned time, place, and location, plaintiffs BENJAMIN SQUIRES and TIFFANY NESBITT were in Apartment 1B with their five (5) dogs.

14. At the aforementioned time, place, and location, plaintiffs KENNETH SQUIRES and DELLON WATERTON were in Apartment 2.

15. At approximately 8:00 p.m. several members of the NYPD, including, upon information and belief, P.O. WOODSON and POLICE OFFICERS "JOHN DOE" #1-10 arrived at 130 Milford St., to look for someone who allegedly lived in Apartment 1A.

16. Upon the defendant officers' arrival, the defendant officers demanded that plaintiffs BENJAMIN SQUIRES and TIFFANY NESBITT exit their apartment – namely, Apartment 1B. Plaintiffs BENJAMIN SQUIRES and TIFFANY NESBITT complied with this directive and upon exiting Apartment 1B said NYPD officers, upon information and belief, P.O. WOODSON and POLICE OFFICERS "JOHN DOE" #1-10, immediately placed them under arrest by tightly handcuffing plaintiffs' arms behind their backs.

17. In addition, upon the defendant officers' arrival at 130 Milford St., several of the defendant officers entered the apartment building, approached Apartment 2, and demanded that plaintiffs KENNETH SQUIRES and DELLON WATERTON open the door and exit Apartment 2 with their hands up. Plaintiffs KENNETH SQUIRES and DELLON WATERTON complied with this directive and exited Apartment 2.

18. Upon exiting Apartment 2, said defendant officers pointed guns at plaintiff's KENNETH SQUIRES and DELLON WATERTON. Subsequently, said NYPD officers, upon information and belief, P.O. WOODSON and POLICE OFFICERS "JOHN DOE" #1-10, immediately placed plaintiffs KENNETH SQUIRES and DELLON WATERTON under arrest by tightly handcuffing plaintiffs' arms behind their backs.

19. Subsequently, plaintiffs BENJAMIN SQUIRES and TIFFANY NESBITT were questioned and detained outside of their apartment for several hours. Thereafter, they were transported to the 83rd Precinct, located at 480 Knickerbocker Ave., where they were searched, further detained in a holding cell for several hours, and questioned a second time, before being released without being charged when their arrests were voided.

20. In addition, plaintiffs KENNETH SQUIRES and DELLON WATERTON were searched and then immediately transported to the 83rd Precinct, located at 480 Knickerbocker Ave. Upon arrival at said precinct they were searched, detained in a holding cell for several hours, and questioned, before being released without being charged when their arrests were voided.

21. Subsequently, when plaintiffs BENJAMIN SQUIRES and TIFFANY NESBITT attempted to return to their apartment, Apartment 1B, there were officers stationed in front of their apartment building. These officers advised plaintiffs BENJAMIN SQUIRES and TIFFANY NESBITT that they were not allowed into their apartment and further advised them that the police were in the process of obtaining a search warrant.

22. Subsequently, plaintiffs BENJAMIN SQUIRES and TIFFANY NESBITT were permitted to enter the apartment for the limited purpose of getting some clothing and feeding their dogs. However, plaintiffs BENJAMIN SQUIRES and TIFFANY NESBITT were not permitted to return to their apartment for several days. As a result, plaintiffs BENJAMIN SQUIRES and

TIFFANY NESBITT were forced to find alternative housing and sleeping arrangements. Further, plaintiffs BENJAMIN SQUIRES and TIFFANY NESBITT were not permitted to get and/or take their dogs with them.

23. Subsequently, the defendant officers ransacked plaintiffs BENJAMIN SQUIRES and TIFFANY NESBITT's apartment and destroyed multiple items of their property. As such, when plaintiffs BENJAMIN SQUIRES and TIFFANY NESBITT were finally permitted to return to their apartment, they found the apartment to be in complete disarray and found several items of property had been damaged and/or destroyed.

24. In addition, plaintiffs BENJAMIN SQUIRES and TIFFANY NESBITT found their dogs locked in a small bathroom with no access to food or water, limited space to move, and deplorable conditions. Upon information and belief, the named defendant officers were responsible for locking plaintiffs' BENJAMIN SQUIRES and TIFFANY NESBITT dogs in these deplorable conditions.

25. Upon information and belief, the defendants DET. TYRONE WOODSON and POLICE OFFICERS "JOHN DOE" #1-10, did not enter pursuant to a valid search warrant.

26. Upon information and belief, the defendants DET. TYRONE WOODSON and POLICE OFFICERS "JOHN DOE" #1-10, did not provide a copy of said warrant to plaintiff upon repeated requests.

27. Upon information and belief, the defendants DET. TYRONE WOODSON and POLICE OFFICERS "JOHN DOE" #1-10, if they did possess a warrant, did not enter in a manner or at a time authorized in the warrant.

28. Upon information and belief, the defendants DET. TYRONE WOODSON and POLICE OFFICERS "JOHN DOE" #1-10, if they did possess a warrant, did not conduct the search

in a reasonable manner and caused unreasonable damage to plaintiffs' property, deprived plaintiffs' access to their property for an unreasonable amount time, and placed plaintiffs' dogs in unfit conditions.

29. Upon information and belief, the defendants DET. TYRONE WOODSON and POLICE OFFICERS "JOHN DOE" #1-10, did not conduct the search in a reasonable manner and caused unreasonable damage to plaintiffs' property, deprived plaintiffs' access to their property for an unreasonable amount time, and placed plaintiffs' dogs in unfit conditions.

30. Upon information and belief, none of the plaintiffs were listed or described as suspects or targets on any application for any warrant.

31. Defendants DET. TYRONE WOODSON and POLICE OFFICERS "JOHN DOE" #1-10, searched plaintiffs persons and effects without their consent or probable cause and/or reasonable suspicion.

32. At no time on October 19, 2017, did defendants DET. TYRONE WOODSON and POLICE OFFICERS "JOHN DOE" #1-10, possess probable cause and/or reasonable suspicion to search plaintiffs' persons or effects nor did they obtain voluntary consent from them to do so.

33. At no time on October 19, 2017, did defendants DET. TYRONE WOODSON and POLICE OFFICERS "JOHN DOE" #1-10, possess information that would lead a reasonable officer to believe probable cause and/or reasonable suspicion existed to search plaintiffs' persons or effects.

34. At no time on October 19, 2017, did defendants DET. TYRONE WOODSON and POLICE OFFICERS "JOHN DOE" #1-10, possess probable cause to arrest plaintiffs.

35. At no time on October 19, 2017, did defendants DET. TYRONE WOODSON and POLICE OFFICERS "JOHN DOE" #1-10, possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiffs.

36. At no time on October 19, 2017, did plaintiffs BENJAMIN SQUIRES, KENNETH SQUIRES, DELLON WATERTON, and TIFFANY NESBITT commit any crimes or offenses or behave unlawfully in any way, nor was any evidence or contraband found on their persons or in their effects.

37. As a result of the foregoing, plaintiffs BENJAMIN SQUIRES, KENNETH SQUIRES, DELLON WATERTON, and TIFFANY NESBITT spent approximately six (6) to eight (8) hours in custody each before their arrests were voided and they were released.

38. In addition, as a result of the foregoing, plaintiff DELLON WATERTON missed approximately one (1) day of work causing him to lose wages.

39. As a result of the foregoing, plaintiffs BENJAMIN SQUIRES, KENNETH SQUIRES, DELLON WATERTON, and TIFFANY NESBITT sustained, inter alia, loss of liberty, loss/damage to property, lost wages, physical injuries, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of their constitutional rights.

STATE CLAIMS

40. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

41. On or about December 19, 2017 and within (90) days after the claim herein accrued, the plaintiffs duly served upon, presented to and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

42. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

43. Defendant THE CITY OF NEW YORK demanded four (4) hearings (one for each named plaintiff) pursuant to General Municipal Law § 50-h and said hearings were held on or about March 14, 2018.

44. This action was commenced within one (1) year and ninety (90) days after the causes of action herein accrued.

45. Plaintiffs have complied with all conditions precedent to maintaining the instant action.

46. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

**FIRST CLAIM FOR RELIEF UNDER N.Y. STATE LAW
FALSE ARREST/IMPRISONMENT**

47. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

48. Defendants DET. TYRONE WOODSON and POLICE OFFICERS “JOHN DOE” #1-10 arrested plaintiffs in the absence of probable cause and without a warrant.

49. As a result of the foregoing, plaintiffs were falsely imprisoned, their liberty was restricted for an extended period of time, they was put in fear for their safety, they suffered economic damages, and was humiliated and subjected to handcuffing and other physical restraints.

50. Plaintiffs were conscious of said confinement and did not consent to the same.

51. The confinement of plaintiffs was without probable cause and was not otherwise privileged.

52. As a result of the aforesaid conduct by defendants DET. TYRONE WOODSON and POLICE OFFICERS “JOHN DOE” #1-10, plaintiffs were subjected to an illegal, improper and false arrest by the defendants and taken into custody and caused to be falsely imprisoned, detained, confined, incarcerated and prosecuted by the defendants in criminal proceedings. The aforesaid actions by the defendants constituted a deprivation of plaintiffs’ rights.

53. As a result of the aforementioned conduct, plaintiffs have suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

SECOND CLAIM FOR RELIEF UNDER N.Y. STATE LAW
ASSAULT

54. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

55. Defendants DET. TYRONE WOODSON and and/or POLICE OFFICERS “JOHN DOE” #1-10 aforementioned actions placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

56. As a result of defendants’ conduct, plaintiffs have suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

THIRD CLAIM FOR RELIEF UNDER N.Y. STATE LAW
BATTERY

57. Plaintiffs repeat, reiterate, and reallege each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

58. Defendants DET. TYRONE WOODSON and POLICE OFFICERS “JOHN DOE” #1-10 touched plaintiffs in a harmful and offensive manner.

59. Defendants DET. TYRONE WOODSON and POLICE OFFICERS “JOHN DOE” #1-10, did so without privilege or consent from plaintiffs.

60. As a result of defendants' conduct, plaintiffs have suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

**FOURTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

61. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

62. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

63. The aforementioned conduct was committed by defendants DET. TYRONE WOODSON and POLICE OFFICERS "JOHN DOE" #1-10, while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

64. The aforementioned conduct was committed by defendants DET. TYRONE WOODSON and POLICE OFFICERS "JOHN DOE" #1-10, while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

65. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiffs.

66. As a result of the aforementioned conduct, plaintiffs suffered severe emotional distress, mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

**FIFTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION**

67. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

68. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

69. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

70. Due to the negligence of the defendants as set forth above, plaintiffs suffered mental injury, pain and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

71. As a result of the foregoing, plaintiffs are entitled to compensatory damages and are further entitled to punitive damages against the individual defendants.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF **DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

72. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

73. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

74. All of the aforementioned acts deprived plaintiffs of their rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

75. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all of the actual and/or apparent authority attendant thereto.

76. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and corrections officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department and the New York City Department of Corrections, all under the supervision of ranking officers of said department.

77. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF ARISING
FALSE ARREST UNDER 42 U.S.C. § 1983**

78. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

79. As a result of the aforesaid conduct by defendants DET. TYRONE WOODSON and POLICE OFFICERS “JOHN DOE” #1-10, plaintiffs were subjected to illegal, improper and false arrest by the defendants DET. TYRONE WOODSON and OFFICERS “JOHN DOE” #1-10, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

80. As a result of the foregoing, plaintiffs’ liberties were restricted for an extended period of time, they were put in fear for their safety, and they were humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

**THIRD CLAIM FOR RELIEF
UNLAWFUL SEARCH AND ENTRY UNDER 42 U.S.C. § 1983**

81. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

82. As a result of the aforesaid conduct by defendants DET. TYRONE WOODSON and POLICE OFFICERS “JOHN DOE” #1-10, plaintiffs’ home(s) and possessions were illegally and improperly, seized, entered, and searched without consent, a valid warrant, probable cause, privilege or consent, in violation of their constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

83. As a result of the aforesaid conduct by the defendants DET. TYRONE WOODSON and POLICE OFFICERS “JOHN DOE” #1-10, plaintiffs’ homes were entered into illegally at time and upon information and belief not prescribed in any warrant, in violation of their constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

84. As a result of the aforesaid conduct by the defendants DET. TYRONE WOODSON and POLICE OFFICERS “JOHN DOE” #1-10, plaintiffs’ homes were entered into and searched illegally in an unreasonable manner, not prescribed in any warrant, in violation of their constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

85. As a result of the aforesaid conduct by the defendants DET. TYRONE WOODSON and POLICE OFFICERS “JOHN DOE” #1-10, plaintiffs were not provided a copy of said warrant upon their request, in violation of their constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

86. As a result of the aforesaid conduct by the defendants DET. TYRONE WOODSON and POLICE OFFICERS “JOHN DOE” #1-10, plaintiffs were subjected to an illegal search and seizure pursuant to an invalid search warrant obtained with stale information, in violation of their

constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

87. As a result of the aforesaid conduct by the defendants DET. TYRONE WOODSON and POLICE OFFICERS "JOHN DOE" #1-10, plaintiffs were subjected to an illegal search and seizure pursuant to an invalid anticipatory search warrant for which probable cause was lacking, in violation of their constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

88. As a result of the aforesaid conduct by the defendants DET. TYRONE WOODSON and POLICE OFFICERS "JOHN DOE" #1-10, plaintiffs were subjected to an illegal search and seizure pursuant to an invalid search warrant issued upon an affidavit containing false or recklessly inaccurate information and/or which omitted information upon which a judge would have concluded there was no probable cause for its issuance, in violation of their constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

89. As a result of the aforesaid conduct by defendants DET. TYRONE WOODSON and POLICE OFFICERS "JOHN DOE" #1-10, plaintiffs' homes and possessions were illegally and improperly searched without any warrant, probable cause, privilege or consent, in violation of their constitutional rights as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.

90. As a result of the aforesaid conduct by defendants DET. TYRONE WOODSON and POLICE OFFICERS "JOHN DOE" #1-10, defendants caused unreasonable damage to plaintiffs' property.

91. As a result of the aforesaid conduct by defendants DET. TYRONE WOODSON and POLICE OFFICERS “JOHN DOE” #1-10, defendants deprived plaintiffs’ were locked out of their home for an unreasonable amount of time and/or denied access to their property for an unreasonable amount time.

92. As a result of the aforesaid conduct by defendants DET. TYRONE WOODSON and POLICE OFFICERS “JOHN DOE” #1-10, plaintiffs’ BENJAMIN SQUIRES AND TIFFANY NESBITT dogs were left in unreasonable and deplorable conditions causing said plaintiff’s emotional distress.

FOURTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

93. Plaintiffs repeat, reiterate, and re-allege each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

94. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

95. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- a. arresting individuals regardless of probable cause in order to inflate the officer’s arrest statistics; and,
- b. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- c. executing search warrants and arresting any and all individuals in said premises regardless of individualized probable cause; and,
- d. executing search warrants in an unreasonable manner and causing unnecessary damage and/or destruction to plaintiff’s property and/or pets;

- e. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
- f. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,
- g. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

96. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiffs.

97. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.

98. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiffs as alleged herein.

99. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiffs' constitutional rights.

100. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiffs' constitutional rights.

101. The acts complained of deprived the plaintiffs of their rights:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;

- C. Not to have summary punishment imposed upon them; and
- D. To receive equal protection under the law.

WHEREFORE, plaintiffs respectfully request judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
August 10, 2018

BY: _____/S_____
ILYSSA FUCHS
GERALD COHEN
JOSHUA FITCH
COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

ATTORNEY'S VERIFICATION

ILYSSA S. FUCHS, an attorney duly admitted to practice law in the Courts of the State of New York, states:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for the plaintiffs BENJAMIN SQUIRES, KENNETH SQUIRES, and DELLON WATERTON in the within entitled action.

That your deponent has read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiffs is that the plaintiffs are not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
August 10, 2018

_____/S_____
ILYSSA S. FUCHS